

03-1100-00
 ALLIANT INSURANCE SERVICES INC
 5 GREENWICH PARK
 GREENWICH CT 06831

Auto-Owners **INSURANCE**

LIFE • HOME • CAR • BUSINESS

Agency phone: (419) 794-4724

PO BOX 30660 • LANSING, MI 48909-8160

02-20-2024

AUTO-OWNERS INSURANCE COMPANY

You can view your policy, pay your bill, or change your paperless options at any time online at www.auto-owners.com.

ADDITIONAL WAYS TO PAY YOUR BILL

Pay Online
www.auto-owners.com
 Pay My Bill

Pay by Mail
 AUTO-OWNERS INSURANCE
 PO BOX 740312
 CINCINNATI, OH 45274-0312

Pay by Phone
 1-800-288-8740

JACKSONVILLE PORT AUTHORITY
 2831 TALLEYRAND AVE
 JACKSONVILLE FL 32206-3417

RE: Policy 52-785-630-00

Billing Account 100968224

Thank you for selecting Auto-Owners Insurance Group to serve your insurance needs! Feel free to contact your independent Auto-Owners agent with questions you may have. If you have questions your agent is unable to answer, please contact us at 517.323.1200.

Auto-Owners and its affiliate companies offer a full complement of policies, each of which has its own eligibility requirements, coverages and rates. In addition, Auto-Owners also offers many billing options. Please take this opportunity to review your insurance needs with your Auto-Owners agent, and discuss which company, program, and billing option may be most appropriate for you.

Auto-Owners Insurance Company was formed in 1916. Our A++ (Superior) rating by A.M. Best Company signifies that we have the financial strength to provide the insurance protection you need. The Auto-Owners Insurance Group is comprised of six property and casualty companies and a life insurance company.

Serving Our Policyholders and Agents Since 1916

NOTICE OF PRIVACY PRACTICES

What We Do To Protect Your Privacy

At Auto-Owners Insurance Group*, we value your business and we want to retain your trust. In the course of providing products and services, we may obtain nonpublic personal information about you. We assure you that such information is used only for the purpose of providing our products and services to you.

Protecting Confidentiality

Our agents and Company associates may have access to nonpublic personal information only for the purpose of providing our products or services to you. We maintain physical, electronic and procedural safeguards against unauthorized use of your nonpublic personal information.

Information We Obtain

To assist in underwriting and servicing your policy, we may obtain nonpublic personal information about you. For example, we routinely obtain information through applications, forms related to our products or services, from visiting www.auto-owners.com, and your transactions with us. We may obtain such information from our affiliates, independent insurance agents, governmental agencies, third parties, or consumer reporting agencies.

The type of information that we collect depends on the product or service requested, but may include your name, address, contact information, social security number, credit history, claims history, information to properly investigate and resolve any claims, or billing information. We may obtain your medical history with your permission. The nature and extent of the information we obtain varies based on the nature of the products and services you receive.

The Internet and Your Information

If you would like to learn about how we gather and protect your information over the Internet, please see our online privacy statement at www.auto-owners.com/privacy.

Generally, Auto-Owners may use cookies, analytics, and other technologies to help us provide users with better service and a more customized web experience. Our business partners may use tracking services, analytics, and other technologies to monitor visits to www.auto-owners.com. The website may use web beacons in addition to cookies. You may choose to not accept cookies by changing the settings in your web browser.

Information obtained on our websites may include IP address, browser and platform types, domain names, access times, referral data, and your activity while using our site; who should use our web site; the security of information over the Internet; and links and co-branded sites.

Limited Disclosure

Auto-Owners Insurance Group companies do not disclose any nonpublic personal information about their customers or former customers except as permitted by law. We do not sell your personal information to anyone. We do not offer an opportunity for you to prevent or "opt out of" information sharing since we only share personal information with others as allowed by law.

When sharing information with third parties to help us conduct our business, we require them to protect your personal information. We do not permit them to use or share your personal information for any purpose other than the work they are doing on our behalf or as required by law.

The types of information disclosed may include personal information we collect as necessary to service your policy or account, investigate and pay claims, comply with state and federal regulatory requests or demands, and process other transactions that you request. Third parties that receive disclosures may include your independent agent, regulators, reinsurance companies, fraud prevention agencies, or insurance adjusters.

How Long We Retain Your Information

We generally retain your information as long as reasonably necessary to provide you services or to comply with applicable law and in accordance with our document retention policy. We may retain copies of information about you and any transactions or services you have used for a period of time that is consistent with applicable law, applicable statute of limitations or as we believe is reasonably necessary to comply with applicable law, regulation, legal process or governmental request, to detect or prevent fraud, to collect fees owed, to resolve disputes, to address problems with our services, to assist with investigations, to enforce other applicable agreements or policies or to take any other actions consistent with applicable law.

In some circumstances we may anonymize your personal information (so that it can no longer be associated with you) for research or statistical purposes, in which case we may use this information indefinitely without further notice to you. This allows the specific information collected (name, email, address, phone number, etc.) to become anonymous, but allows Auto-Owners to keep the transaction or engagement data.

Changes to the Privacy Policy

We will provide a notice of our privacy policy as required by law. This policy may change from time to time, but you can always review our current policy by visiting our website at www.auto-owners.com/privacy or by contacting us.

Contact Us

Auto-Owners Insurance Company
Phone: 844-359-4595 (toll free)
Email: privacyrequest@aoins.com

*Auto-Owners Insurance Group includes, Auto-Owners Insurance Company, Auto-Owners Life Insurance Company, Home-Owners Insurance Company, Owners Insurance Company, Property-Owners Insurance Company and Southern-Owners Insurance Company.

Agency Code 03-1100-00

Policy Number 52-785-630-00

**FLORIDA AUTOMOBILE INSURANCE
IDENTIFICATION CARD**

Auto-Owners Insurance Company Lansing, MI
Company Code: 09703
Policy Number **52-785-630-00** Effective Date **04-06-2024**
Personal Injury Protection Benefits **YES** Bodily Injury Liability **YES**
Property Damage Liability **YES**
Named Insured **JACKSONVILLE PORT AUTHORITY**

Year/Make **2020 FORD EXPEDITION**
VIN **1FMJU1HT5LEA70545**
Agency **ALLIANT INSURANCE SERVICES INC**
Phone **(419) 794-4724** Agency Code **03-1100-00**

**NOT VALID FOR MORE THAN ONE YEAR
FROM EFFECTIVE DATE**

THE INSURANCE COVERAGES AVAILABLE UNDER THIS POLICY MAY APPLY TO VEHICLES YOU RENT. SEE OUTLINE OF COVERAGE AND CONTACT YOUR AGENCY.

**MISREPRESENTATION OF INSURANCE IS A
FIRST DEGREE MISDEMEANOR**

THIS FORM DOES NOT CONSTITUTE ANY PART OF YOUR INSURANCE POLICY AND MAY NOT BE USED TO MODIFY THE TERMS OR CONDITIONS OF THE POLICY. EXAMINE YOUR POLICY CAREFULLY.

KEEP THIS CARD IN YOUR POSSESSION AT ALL TIMES.

The Florida Bureau of Financial Responsibility requires that all licensed drivers carry an insurance identification card at all times. If you require more cards for other licensed drivers covered under this policy, SEE YOUR AGENT.

89414 (2-12)

**FLORIDA AUTOMOBILE INSURANCE
IDENTIFICATION CARD**

Auto-Owners Insurance Company Lansing, MI
Company Code: 09703
Policy Number **52-785-630-00** Effective Date **04-06-2024**
Personal Injury Protection Benefits **YES** Bodily Injury Liability **YES**
Property Damage Liability **YES**
Named Insured **JACKSONVILLE PORT AUTHORITY**

Year/Make **2020 FORD EXPEDITION**
VIN **1FMJU1HT5LEA70545**
Agency **ALLIANT INSURANCE SERVICES INC**
Phone **(419) 794-4724** Agency Code **03-1100-00**

**NOT VALID FOR MORE THAN ONE YEAR
FROM EFFECTIVE DATE**

THE INSURANCE COVERAGES AVAILABLE UNDER THIS POLICY MAY APPLY TO VEHICLES YOU RENT. SEE OUTLINE OF COVERAGE AND CONTACT YOUR AGENCY.

**MISREPRESENTATION OF INSURANCE IS A
FIRST DEGREE MISDEMEANOR**

THIS FORM DOES NOT CONSTITUTE ANY PART OF YOUR INSURANCE POLICY AND MAY NOT BE USED TO MODIFY THE TERMS OR CONDITIONS OF THE POLICY. EXAMINE YOUR POLICY CAREFULLY.

KEEP THIS CARD IN YOUR POSSESSION AT ALL TIMES.

The Florida Bureau of Financial Responsibility requires that all licensed drivers carry an insurance identification card at all times. If you require more cards for other licensed drivers covered under this policy, SEE YOUR AGENT.

89414 (2-12)

**FLORIDA AUTOMOBILE INSURANCE
IDENTIFICATION CARD**

Auto-Owners Insurance Company Lansing, MI
Company Code: 09703
Policy Number **52-785-630-00** Effective Date **04-06-2024**
Personal Injury Protection Benefits **YES** Bodily Injury Liability **YES**
Property Damage Liability **YES**
Named Insured **JACKSONVILLE PORT AUTHORITY**

Year/Make **2015 CHEV TAHOE**
VIN **1GNSK3EC9FR276177**
Agency **ALLIANT INSURANCE SERVICES INC**
Phone **(419) 794-4724** Agency Code **03-1100-00**

**NOT VALID FOR MORE THAN ONE YEAR
FROM EFFECTIVE DATE**

THE INSURANCE COVERAGES AVAILABLE UNDER THIS POLICY MAY APPLY TO VEHICLES YOU RENT. SEE OUTLINE OF COVERAGE AND CONTACT YOUR AGENCY.

**MISREPRESENTATION OF INSURANCE IS A
FIRST DEGREE MISDEMEANOR**

THIS FORM DOES NOT CONSTITUTE ANY PART OF YOUR INSURANCE POLICY AND MAY NOT BE USED TO MODIFY THE TERMS OR CONDITIONS OF THE POLICY. EXAMINE YOUR POLICY CAREFULLY.

KEEP THIS CARD IN YOUR POSSESSION AT ALL TIMES.

The Florida Bureau of Financial Responsibility requires that all licensed drivers carry an insurance identification card at all times. If you require more cards for other licensed drivers covered under this policy, SEE YOUR AGENT.

89414 (2-12)

**FLORIDA AUTOMOBILE INSURANCE
IDENTIFICATION CARD**

Auto-Owners Insurance Company Lansing, MI
Company Code: 09703
Policy Number **52-785-630-00** Effective Date **04-06-2024**
Personal Injury Protection Benefits **YES** Bodily Injury Liability **YES**
Property Damage Liability **YES**
Named Insured **JACKSONVILLE PORT AUTHORITY**

Year/Make **2015 CHEV TAHOE**
VIN **1GNSK3EC9FR276177**
Agency **ALLIANT INSURANCE SERVICES INC**
Phone **(419) 794-4724** Agency Code **03-1100-00**

**NOT VALID FOR MORE THAN ONE YEAR
FROM EFFECTIVE DATE**

THE INSURANCE COVERAGES AVAILABLE UNDER THIS POLICY MAY APPLY TO VEHICLES YOU RENT. SEE OUTLINE OF COVERAGE AND CONTACT YOUR AGENCY.

**MISREPRESENTATION OF INSURANCE IS A
FIRST DEGREE MISDEMEANOR**

THIS FORM DOES NOT CONSTITUTE ANY PART OF YOUR INSURANCE POLICY AND MAY NOT BE USED TO MODIFY THE TERMS OR CONDITIONS OF THE POLICY. EXAMINE YOUR POLICY CAREFULLY.

KEEP THIS CARD IN YOUR POSSESSION AT ALL TIMES.

The Florida Bureau of Financial Responsibility requires that all licensed drivers carry an insurance identification card at all times. If you require more cards for other licensed drivers covered under this policy, SEE YOUR AGENT.

89414 (2-12)

IN CASE OF ACCIDENT

1. Obtain name and address of other driver(s), insurance information, license number, details of accident, names and addresses of witnesses and take photos of the accident scene and involved vehicles.
2. Do not discuss details of the accident with anyone but the investigating officer. Make no admissions or offer payments.
3. Contact your agent promptly to report the accident. The phone number of your agent is on the front side of this form. If you are unable to reach your agent after normal business hours, please call 1-888-252-4626 to report your claim.
4. Please consider visiting our website (www.Auto-Owners.com) or download our app (Auto-Owners Mobile) for more details on what to expect after reporting a claim.

CANADA NON-RESIDENT INTER-PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD

CERTIFICAT D'ASSURANCE - AUTOMOBILE RESPONSABILITÉ

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements of every province of Canada.

WARNING- Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his license may be suspended.

This card should be carried in the insured vehicle for production as proof of insurance when demanded by police.

89271 (9-18)

IN CASE OF ACCIDENT

1. Obtain name and address of other driver(s), insurance information, license number, details of accident, names and addresses of witnesses and take photos of the accident scene and involved vehicles.
2. Do not discuss details of the accident with anyone but the investigating officer. Make no admissions or offer payments.
3. Contact your agent promptly to report the accident. The phone number of your agent is on the front side of this form. If you are unable to reach your agent after normal business hours, please call 1-888-252-4626 to report your claim.
4. Please consider visiting our website (www.Auto-Owners.com) or download our app (Auto-Owners Mobile) for more details on what to expect after reporting a claim.

CANADA NON-RESIDENT INTER-PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD

CERTIFICAT D'ASSURANCE - AUTOMOBILE RESPONSABILITÉ

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements of every province of Canada.

WARNING- Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his license may be suspended.

This card should be carried in the insured vehicle for production as proof of insurance when demanded by police.

89271 (9-18)

IN CASE OF ACCIDENT

1. Obtain name and address of other driver(s), insurance information, license number, details of accident, names and addresses of witnesses and take photos of the accident scene and involved vehicles.
2. Do not discuss details of the accident with anyone but the investigating officer. Make no admissions or offer payments.
3. Contact your agent promptly to report the accident. The phone number of your agent is on the front side of this form. If you are unable to reach your agent after normal business hours, please call 1-888-252-4626 to report your claim.
4. Please consider visiting our website (www.Auto-Owners.com) or download our app (Auto-Owners Mobile) for more details on what to expect after reporting a claim.

CANADA NON-RESIDENT INTER-PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD

CERTIFICAT D'ASSURANCE - AUTOMOBILE RESPONSABILITÉ

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements of every province of Canada.

WARNING- Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his license may be suspended.

This card should be carried in the insured vehicle for production as proof of insurance when demanded by police.

89271 (9-18)

IN CASE OF ACCIDENT

1. Obtain name and address of other driver(s), insurance information, license number, details of accident, names and addresses of witnesses and take photos of the accident scene and involved vehicles.
2. Do not discuss details of the accident with anyone but the investigating officer. Make no admissions or offer payments.
3. Contact your agent promptly to report the accident. The phone number of your agent is on the front side of this form. If you are unable to reach your agent after normal business hours, please call 1-888-252-4626 to report your claim.
4. Please consider visiting our website (www.Auto-Owners.com) or download our app (Auto-Owners Mobile) for more details on what to expect after reporting a claim.

CANADA NON-RESIDENT INTER-PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD

CERTIFICAT D'ASSURANCE - AUTOMOBILE RESPONSABILITÉ

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements of every province of Canada.

WARNING- Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his license may be suspended.

This card should be carried in the insured vehicle for production as proof of insurance when demanded by police.

89271 (9-18)

Agency Code 03-1100-00

Policy Number 52-785-630-00

**FLORIDA AUTOMOBILE INSURANCE
IDENTIFICATION CARD**

Auto-Owners Insurance Company Lansing, MI
Company Code: 09703
Policy Number **52-785-630-00** Effective Date **04-06-2024**
Personal Injury Protection Benefits **YES** Bodily Injury Liability **YES**
Property Damage Liability **YES**
Named Insured **JACKSONVILLE PORT AUTHORITY**

Year/Make **2016 FORD EXPEDITION**
VIN **1FMJU1HT0GEF39093**
Agency **ALLIANT INSURANCE SERVICES INC**
Phone **(419) 794-4724** Agency Code **03-1100-00**

**NOT VALID FOR MORE THAN ONE YEAR
FROM EFFECTIVE DATE**

THE INSURANCE COVERAGES AVAILABLE UNDER THIS POLICY MAY
APPLY TO VEHICLES YOU RENT. SEE OUTLINE OF COVERAGE AND
CONTACT YOUR AGENCY.

**MISREPRESENTATION OF INSURANCE IS A
FIRST DEGREE MISDEMEANOR**

THIS FORM DOES NOT CONSTITUTE ANY PART OF YOUR
INSURANCE POLICY AND MAY NOT BE USED TO MODIFY THE
TERMS OR CONDITIONS OF THE POLICY. EXAMINE YOUR POLICY
CAREFULLY.

KEEP THIS CARD IN YOUR POSSESSION AT ALL TIMES.

The Florida Bureau of Financial Responsibility requires that all licensed
drivers carry an insurance identification card at all times. If you require
more cards for other licensed drivers covered under this policy, SEE
YOUR AGENT.

89414 (2-12)

**FLORIDA AUTOMOBILE INSURANCE
IDENTIFICATION CARD**

Auto-Owners Insurance Company Lansing, MI
Company Code: 09703
Policy Number **52-785-630-00** Effective Date **04-06-2024**
Personal Injury Protection Benefits **YES** Bodily Injury Liability **YES**
Property Damage Liability **YES**
Named Insured **JACKSONVILLE PORT AUTHORITY**

Year/Make **2016 FORD EXPEDITION**
VIN **1FMJU1HT0GEF39093**
Agency **ALLIANT INSURANCE SERVICES INC**
Phone **(419) 794-4724** Agency Code **03-1100-00**

**NOT VALID FOR MORE THAN ONE YEAR
FROM EFFECTIVE DATE**

THE INSURANCE COVERAGES AVAILABLE UNDER THIS POLICY MAY
APPLY TO VEHICLES YOU RENT. SEE OUTLINE OF COVERAGE AND
CONTACT YOUR AGENCY.

**MISREPRESENTATION OF INSURANCE IS A
FIRST DEGREE MISDEMEANOR**

THIS FORM DOES NOT CONSTITUTE ANY PART OF YOUR
INSURANCE POLICY AND MAY NOT BE USED TO MODIFY THE
TERMS OR CONDITIONS OF THE POLICY. EXAMINE YOUR POLICY
CAREFULLY.

KEEP THIS CARD IN YOUR POSSESSION AT ALL TIMES.

The Florida Bureau of Financial Responsibility requires that all licensed
drivers carry an insurance identification card at all times. If you require
more cards for other licensed drivers covered under this policy, SEE
YOUR AGENT.

89414 (2-12)

IN CASE OF ACCIDENT

1. Obtain name and address of other driver(s), insurance information, license number, details of accident, names and addresses of witnesses and take photos of the accident scene and involved vehicles.
2. Do not discuss details of the accident with anyone but the investigating officer. Make no admissions or offer payments.
3. Contact your agent promptly to report the accident. The phone number of your agent is on the front side of this form. If you are unable to reach your agent after normal business hours, please call 1-888-252-4626 to report your claim.
4. Please consider visiting our website (www.Auto-Owners.com) or download our app (Auto-Owners Mobile) for more details on what to expect after reporting a claim.

CANADA NON-RESIDENT INTER-PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD

CERTIFICAT D'ASSURANCE - AUTOMOBILE RESPONSABILITÉ

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements of every province of Canada.

WARNING- Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his license may be suspended.

This card should be carried in the insured vehicle for production as proof of insurance when demanded by police.

89271 (9-18)

IN CASE OF ACCIDENT

1. Obtain name and address of other driver(s), insurance information, license number, details of accident, names and addresses of witnesses and take photos of the accident scene and involved vehicles.
2. Do not discuss details of the accident with anyone but the investigating officer. Make no admissions or offer payments.
3. Contact your agent promptly to report the accident. The phone number of your agent is on the front side of this form. If you are unable to reach your agent after normal business hours, please call 1-888-252-4626 to report your claim.
4. Please consider visiting our website (www.Auto-Owners.com) or download our app (Auto-Owners Mobile) for more details on what to expect after reporting a claim.

CANADA NON-RESIDENT INTER-PROVINCE MOTOR VEHICLE LIABILITY INSURANCE CARD

CERTIFICAT D'ASSURANCE - AUTOMOBILE RESPONSABILITÉ

This certifies that the party named herein is insured against liability for bodily injury and property damage by reason of the operation of the motor vehicle described herein, in an amount not less than the statutory minimum requirements of every province of Canada.

WARNING- Any person who issues or produces a card to show that there is in force a policy of insurance as indicated herein that is in fact not in force is liable to a heavy fine and/or imprisonment and his license may be suspended.

This card should be carried in the insured vehicle for production as proof of insurance when demanded by police.

89271 (9-18)

AVAILABILITY OF RISK MANAGEMENT PLAN - FLORIDA

The Florida Tort Reform and Insurance Act of 1986 requires insurance companies to make available to commercial casualty and commercial property policyholders guidelines for risk management plans.

Risk management guidelines include the following:

A. Safety measures, including, as applicable, the following areas:

1. Pollution and environmental hazards;
2. Disease hazards;
3. Accidental occurrences;
4. Fire hazards and fire prevention and detection;
5. Liability for acts from the course of business;
6. Slip and fall hazards;
7. Product injury; and
8. Hazards unique to a particular class or category of insureds.

B. Training to insureds in safety management techniques.

C. Safety management counseling services.

Risk Management Plan guidelines are available at your request. If you desire this service, please contact your agent or our Loss Control Services department by e-mail at losscontrolsupport@aoins.com or by phone (855) 586-5388.

NOTICE TO POLICYHOLDER

FLORIDA UNINSURED MOTORIST COVERAGE OPTIONS AVAILABLE

Dear Policyholder:

Florida law allows you to make certain choices regarding Uninsured Motorist Coverage provided under your policy. The Uninsured Motorist Coverage provided by your current policy is described in your policy's Declarations page. Your previous selection or rejection of Uninsured Motorist Coverage as reflected on your Declarations page will continue to apply to your auto liability insurance policy and future renewals or replacements of such policy which are issued at the same Bodily Injury Liability limits unless you request a change to your previous selection or rejection in writing. Your selection or rejection shall be conclusively presumed to be an informed, knowing acceptance of such limitations on behalf of all insureds.

This document generally describes all of the coverage options available to you. No coverage is provided by this document. Please review your policy and Declarations page for information regarding your specific coverages.

Uninsured Motorist Coverage Options

Uninsured Motorist Coverage provides coverage for insured persons who are legally entitled to recover damages from owners or operators of uninsured motor vehicles because of bodily injury, sickness or disease, including death which results from any of these. Such benefits may include payments for certain medical expenses, lost wages, and pain and suffering, subject to limitations and conditions contained in the policy. Uninsured Motorist Coverage also extends coverage for damages caused by motor vehicle owners or operators who have Bodily Injury Liability limits lower than the amount of your damages.

You may select Uninsured Motorist Coverage in an amount equal to your limits for Bodily Injury Liability Coverage. You may also select Uninsured Motorist limits lower than your Bodily Injury Liability limits, or you may entirely reject Uninsured Motorist Coverage.

If any named insured is designated as an individual, you have the option to purchase non-stacked Uninsured Motorist Coverage at a reduced rate. If any named insured is designated as other than an individual, your policy will include non-stacked Uninsured Motorist Coverage, unless you reject Uninsured Motorist Coverage entirely. Under this coverage, if injury occurs in a motor vehicle owned or leased by you or a family member who resides with you, this policy will apply only to the extent of coverage (if any) which applies to that vehicle in this policy. If injury occurs while you are occupying a motor vehicle which is not owned by you or a family member who resides with you, or while you are a pedestrian, you are entitled to select the highest limits of Uninsured Motorist Coverage available on any one motor vehicle covered by a policy for which you are a named insured, insured family member, or insured resident of the named insured's household. If the named insured is an individual and you do not elect to purchase the non-stacked coverage, your policy limits for each motor vehicle are added together (stacked) for all covered injuries. Thus, your Uninsured Motorist Coverage limits would automatically change during the policy term if you increase or decrease the number of motor vehicles covered under the policy.

If you have questions regarding your Uninsured Motorist Coverage that is reflected on your policy's Declarations page or wish to select a different option, you must contact your agent and complete the Florida Option to Reject or Modify Uninsured Motorist Coverage form 58021 (1-17).

NOTICE OF CHANGE IN POLICY TERMS COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD

NOTICE OF REDUCTION IN COVERAGE

Dear Policyholder:

The Commercial Auto Plus Coverage Package - Standard endorsement has been revised. Please take time to read through the form to understand the coverages and conditions contained within.

A summary of the changes are as follows:

- Reduction in Coverage: Hired Autos Physical Damage coverage has been revised to indicate that coverage does not extend to an auto (that is not a trailer) you lease, hire, rent, or borrow from any of your employees, partners, members, executive officers, or members of their households.
- Deductible coverage has been renamed Waiver of Deductible for Covered Autos. The coverage provided by this section has not changed.
- Rental Auto Gap coverage has been clarified to indicate that coverage will extend to the individual listed on the Drive Other Car Coverage - Broadened Coverage for Named Individuals endorsement. The coverage provided by this section has not changed.
- All limits and deductibles have been removed from the coverage form and are now displayed on a new Commercial Auto Plus Coverage Package - Standard Declarations page. Coverage limits and deductibles provided by the endorsement have not changed.

This notice is for informational purposes only. Your policy contains the specific terms and conditions of coverage. Please review the enclosed Commercial Auto Plus Coverage Package - Standard endorsement and Declarations carefully. If you have any questions, please contact your insurance agent.

COMMERCIAL AUTO PLUS COVERAGE PACKAGE OPTIONS

Good News! A new **Commercial Auto Plus Coverage Package - Enhanced** endorsement has been introduced. You may currently have the **Commercial Auto Plus Coverage Package - Standard** endorsement. The Enhanced endorsement offers the same coverage provided by the Standard endorsement, as well as some increased limits and additional valuable coverages. Below is a summary of the coverage provided within the Commercial Auto Plus Coverage Package Enhanced and Standard endorsements.

This document is for information purposes only. No coverage is provided by this summary, and it must not be construed to replace or modify any provisions in your policy. Your policy contains the specific terms and conditions of coverage and supersedes this notice.

Coverage	Enhanced	Standard
Supplementary Payments	\$5,000 bail bonds \$500 per day additional expense	
Waiver of Collision Deductible for Collision with Another Auto-Owners Insured	Included	
Waiver of Deductible for Covered Autos	Included	
Common Loss Deductible - Motor Cargo	Included	
Hired Autos Physical Damage	ACV not to exceed \$50,000 - \$100 Comprehensive and \$250 Collision deductibles	
Non-Owned Trailer Physical Damage	\$1,000 per loss	
Personal Property	\$600 per loss	
Business Personal Property	\$500 - \$50 deductible per loss	
Transportation Costs	\$100 per disablement	
Transportation Expenses Following Theft	\$50 per day / \$1,500 per loss	
Air Bag Replacement	Included - \$50 deductible	
Replacement Cost on New Vehicles	Within 90 days of purchase	
Rental Auto Gap Coverage	Included	
Audio, Visual or Data Electronic Equipment	Included	Included up to \$2,500 per loss for media and accessories
Motor Cargo	\$2,500 per loss	\$1,000 per loss
Employees as Insureds	Included	Not Included
Employee Hired Autos	Included	Not Included
Business Interruption	\$5,000, up to 30 days after period of restoration	Not Included
Primary and Noncontributory - Blanket Coverage	Included	Not Included
Auto Loan/Lease Gap Coverage	Included	Not Included
Waiver of Our Right to Recover Payments (Waiver of Subrogation) - Blanket	Included	Not Included

Please contact your independent insurance agent to determine if you are eligible to purchase or upgrade the Commercial Auto Plus Coverage Package on the upcoming renewal of your policy.

Thank you for choosing Auto-Owners Insurance.

OPTION TO MODIFY PERSONAL INJURY PROTECTION BENEFITS

For Personal Injury Protection insurance, the named insured may elect a deductible and to exclude coverage for loss of gross income and loss of earning capacity ("lost wages"). These elections apply to the named insured alone, or to the named insured and all dependent resident family members. A premium reduction will result from these elections. The named insured is hereby advised not to elect the lost wage exclusion if the named insured or dependent resident family members are employed, since lost wages will not be payable in the event of an accident.

If this is an existing or renewal policy, the option you previously selected for Personal Injury Protection will continue to apply, unless you make a different selection below.

Please review carefully and indicate your selection(s) under one of the following options, if desired:

Option 1:

Standard Personal Injury Protection Benefits

Total Aggregate Limit for all Personal

Injury Protection Benefits, except Death Benefits

Medical Expenses

Wage Loss

Replacement Services Expenses

Death Benefits

Limit Per Person

\$10,000 (medical expenses limited to \$2,500 non-emergency)

80% of medical expenses subject to the Florida Motor Vehicle No-Fault Statute's fee schedule and subject to the total aggregate limit for Personal Injury Protection Benefits

60% of wage loss subject to the total aggregate limit subject to the total aggregate limit

\$5,000

☐ Select deductible of ☐ No deductible ☐ \$250 ☐ \$500 ☐ \$1,000 to apply to Personal Injury Protection Benefits for:

☐ Named Insured Only

☐ Named Insured and All Dependent Resident Family Members

☐ Exclude loss of gross income and loss of earning capacity ("lost wages")

☐ Named Insured Only

☐ Named Insured and All Dependent Resident Family Members

Option 2:

Extended Personal Injury Protection Benefits

Total Aggregate Limit for all Personal

Injury Protection Benefits, except Death Benefits

Medical Expenses

Wage Loss

Replacement Services Expenses

Death Benefits

Limit Per Person

\$10,000 (medical expenses limited to \$2,500 non-emergency)

100% of medical expenses subject to the Florida Motor Vehicle No-Fault Statute's fee schedule and subject to the total aggregate limit for Personal Injury Protection Benefits

80% of wage loss subject to the total aggregate limit subject to the total aggregate limit

\$5,000

☐ Select Extended Personal Injury Protection Coverage. **No deductible options are available.**

☐ Exclude loss of gross income and loss of earning capacity ("loss wages"). **Excluded "loss wages" must apply to named insured and all dependent resident family members.**

Signature

Date

Policy Number: 52-785-630-00

Agency: 03-1100-00 ALLIANT INSURANCE SERVICES INC

59243 (6-00)

Florida
POLICYHOLDER INFORMATION AND ASSISTANCE

We are here to serve you and as our policyholder your satisfaction is very important to us. Should you have any questions or a complaint regarding your policy that cannot be resolved by your agent, you may contact our Lakeland Regional Office for information and assistance by calling 863-687-4505.

Auto-Owners Insurance Company
Owners Insurance Company
Southern-Owners Insurance Company

59243 (6-00)

Page 1 of 1

69369 (1-18)

***** IMPORTANT NOTICE *****
EQUIPMENT AND CUSTOM FURNISHINGS

Dear Policyholder:

Enclosed are your renewal Declarations. We are pleased to announce that we are now listing attached equipment and/or custom furnishings, along with a total value, on your Declarations.

Please review your Declarations for autos that have an increased value due to attached equipment or custom furnishings, including truck bodies added to an incomplete chassis. If there is any change in value or there is any attached equipment or custom furnishings not currently accounted for on the policy, please advise your agent.

This notice is for information purposes only. Your policy contains the specific terms and conditions of coverage.

If you have any questions regarding this policy or this notice, please contact your Auto-Owners agent.

69369 (1-18)

Page 1 of 1

COMMERCIAL AUTO POLICY DECLARATIONS
STANDARD PROGRAM

Renewal Effective 04-06-2024

POLICY NUMBER 52-785-630-00

Company Use 05-04-FL-2004

Company Bill	POLICY TERM	
	12:01 a.m.	12:01 a.m.
	04-06-2024 to 04-06-2025	

Entity: Municipality

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

ITEM TWO - SCHEDULE OF COVERED AUTOS AND COVERAGES

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those **autos** shown as covered **autos**. **Autos** are shown as covered **autos** for a particular coverage by the entry of one or more of the symbols from the COVERED AUTOS section of the Commercial Auto Policy next to the name of the coverage.

COVERAGES		COVERED AUTOS SYMBOLS	LIMIT OF INSURANCE FOR ANY ONE ACCIDENT OR LOSS	PREMIUM
Combined Liability		7, 8, 9, 19	\$1Million each accident	\$9,733.08
Uninsured Motorist Coverage		7, 8, 9	\$1Million each person/\$1Million each accident (Non-stacked Uninsured Motorist Coverage selected.)	\$3,376.34
Personal Injury Protection		7	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	\$343.33
Medical Payments		7	\$5,000 each person	\$84.38
Physical Damage	Comprehensive	7	\$250 deductible applies for each covered auto unless a deductible appears in ITEM THREE.	\$518.89
	Collision	7	\$500 deductible applies for each covered auto unless a deductible appears in ITEM THREE.	\$970.27
	Road Trouble Service			No Coverage
	Additional Expense	7	See ITEM THREE for the limit applicable for each covered auto.	\$295.73
Premium for Endorsements				\$79.29
ESTIMATED TOTAL PREMIUM*				\$15,401.31

* This policy may be subject to final audit.

AUTO-OWNERS INS. CO.

Issued 02-20-2024

AGENCY ALLIANT INSURANCE SERVICES INC
03-1100-00 MKT TERR 007

Company
Bill

POLICY NUMBER
Company Use

52-785-630-00
05-04-FL-2004

NAMED INSURED JACKSONVILLE PORT AUTHORITY

Term 04-06-2024 to 04-06-2025

ITEM TWO (Continued)

Endorsements That Apply To All Items: 58000 (01-15) 58001 (01-15) 58200 (01-15) 58524 (01-15) 58550 (01-17) 58555 (01-16)
58558 (03-16) 58706 (07-20) 58800 (11-20) 59325 (12-19) 58097 (05-21)

QUICK REFERENCE FOR COVERED AUTO DESIGNATION SYMBOLS

Refer to the Commercial Auto Policy 58001 Section I for a complete description of COVERED AUTOS and policy provisions that may apply.

1 = Any Auto

2 = Owned Autos Only

3 = Owned Private Passenger Autos Only

4 = Owned Autos Other Than Private Passenger Autos
Only

5 = Owned Autos Subject to No-fault

6 = Owned Autos Subject To A Compulsory Uninsured
Motorists Law

7 = Scheduled Autos Only

8 = Hired Autos Only

9 = Non-owned Autos Only

19 = Mobile Equipment Subject To Compulsory Or
Financial Responsibility Or Other Motor Vehicle
Insurance Law Only

130

AUTO-OWNERS INS. CO.

Issued 02-20-2024

AGENCY ALLIANT INSURANCE SERVICES INC
03-1100-00 MKT TERR 007

Company
Bill

POLICY NUMBER
Company Use

52-785-630-00
05-04-FL-2004

NAMED INSURED JACKSONVILLE PORT AUTHORITY

Term 04-06-2024 to 04-06-2025

	TERRITORY	CLASS
1. 2020 FORD EXPEDITION VIN: 1FMJU1HT5LEA70545	017 Duval County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,473.30
Uninsured Motorist	\$1Million each person/\$1Million each accident	914.42
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	110.75
Medical Payments	\$ 5,000 each person	30.22
Comprehensive	ACV - \$1,000 deductible	225.10
Collision	ACV - \$1,000 deductible	452.14
Additional Expense	\$ 75 per day/\$2,250 per loss	91.48
	TOTAL	\$5,297.41

Interested Parties: None

Additional Endorsements For This Item: 58455 (08-21) 58537 (08-15) 58428 (08-21) 58308 (01-17)

ITEM DETAILS: Full Size SUV operated within a 100 mile radius.

CLASS (01807): Maintenance Vehicles.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Diminished Value Coverage applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2023

130 0050001 A

2. 2015 CHEV TAHOE EQUIP/CUST VIN: 1GNSK3EC9FR276177		017 Duval County, FL
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,024.49
Uninsured Motorist	\$1Million each person/\$1Million each accident	871.07
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	105.42
Medical Payments	\$ 5,000 each person	26.73
Comprehensive	ACV - \$1,000 deductible	139.53
Collision	ACV - \$1,000 deductible	241.63
Additional Expense	\$ 75 per day/\$2,250 per loss	85.85
TOTAL		\$4,494.72

Interested Parties: None

Additional Endorsements For This Item: 58455 (08-21) 58537 (08-15) 58428 (08-21) 58308 (01-17)

ITEM DETAILS: Full Size SUV operated within a 100 mile radius.

CLASS (01807): Maintenance Vehicles.

Commercial Auto Plus Coverage Package - Standard applies

Premium includes rating based on Equipment/Custom Furnishing value of \$2,736 for:

DESCRIPTION UNKNOWN

Vehicle Count Factor Applies.

Diminished Value Coverage applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2023

130 0042265 A

AUTO-OWNERS INS. CO.

Issued 02-20-2024

AGENCY ALLIANT INSURANCE SERVICES INC
03-1100-00 MKT TERR 007

Company
Bill

POLICY NUMBER
Company Use

52-785-630-00
05-04-FL-2004

NAMED INSURED JACKSONVILLE PORT AUTHORITY

Term 04-06-2024 to 04-06-2025

		TERRITORY	CLASS
3. 2016 FORD EXPEDITION VIN: 1FMJU1HT0GEF39093		017 Duval County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,059.41	
Uninsured Motorist	\$1Million each person/\$1Million each accident	1,277.73	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	127.16	
Medical Payments	\$ 5,000 each person	27.43	
Comprehensive	ACV - \$1,000 deductible	154.26	
Collision	ACV - \$1,000 deductible	276.50	
Additional Expense	\$ 75 per day/\$2,250 per loss	118.40	
TOTAL		\$5,040.89	

Interested Parties: None

Additional Endorsements For This Item: 58455 (08-21) 58537 (08-15) 58428 (08-21) 58308 (01-17)

ITEM DETAILS: Full Size SUV 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01807): Maintenance Vehicles.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Diminished Value Coverage applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2023

130 0045095

Endorsements That Apply To This Policy

Employee Hired Autos		017 Duval County, FL	SPL
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$18.69	
Uninsured Motorist	\$1Million each person/\$1Million each accident	3.82	
TOTAL		\$22.51	

Additional Endorsements For This Item: 58546 (01-15) 58308 (01-17)

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2023

130

AUTO-OWNERS INS. CO.

Issued 02-20-2024

AGENCY ALLIANT INSURANCE SERVICES INC
03-1100-00 MKT TERR 007Company
BillPOLICY NUMBER
Company Use52-785-630-00
05-04-FL-2004

NAMED INSURED JACKSONVILLE PORT AUTHORITY

Term 04-06-2024 to 04-06-2025

	TERRITORY	CLASS
	017	
Commercial Auto Plus Coverage Package - Standard	Duval County, FL	
COVERAGES	PREMIUM	
See Commercial Auto Plus Coverage Package - Standard Declarations	\$56.78	
TOTAL	\$56.78	

Additional Endorsements For This Item: 58514 (01-22)

ITEM DETAILS: 3 qualified item(s).

Physical damage coverages apply under the Commercial Auto Plus Coverage Package - Standard to qualified items that have the applicable comprehensive and/or collision coverage(s). Liability coverages provided by this endorsement apply to covered autos insured for liability.

Rate Effective Date 06-08-2023

130

	TERM
ESTIMATED TOTAL PREMIUM	\$15,401.31
PAID IN FULL DISCOUNT	-2,156.18
ESTIMATED TOTAL PREMIUM IF PAID IN FULL	\$13,245.13

The Paid In Full Discount does not apply to fixed fees or statutory charges.

Policy Rate Code 0000

00369
562910

Countersigned By: ALLIANT INSURANCE SERVICES INC

COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS

The coverages, limits, and deductibles indicated below apply separately to each auto afforded the Commercial Auto Plus Coverage Package - Standard as identified in the Item Details section of the item regardless of the number of autos designated in the Commercial Auto Declarations.

Commercial Auto Plus Coverage Package - Standard	
COVERAGE	LIMITS
Supplementary Payments	\$5,000 bail bonds
	\$500 per day additional expenses
Waiver of Collision Deductible for Collision With Another Auto-Owners Insured	See form
Waiver of Deductible for Covered Autos	See form
Non-Owned Trailer Physical Damage	\$1,000 per loss
Personal Property	\$600 per loss
Audio, Visual or Data Electronic Equipment	\$2,500 per loss
	\$200 per loss for media and accessories
Business Personal Property	\$500 per loss
	\$50 deductible
Hired Autos Physical Damage Comprehensive	ACV not exceed \$50,000
	\$100 deductible each covered auto
Collision	ACV not exceed \$50,000
	\$250 deductible each covered auto
Transportation Costs	\$100 per disablement
Transportation Expenses Following Theft	\$50 per day
	\$1,500 per loss
Motor Cargo	\$1,000 per loss
Air Bag Replacement	See form
	\$50 deductible
Common Loss Deductible - Motor Cargo	See form
Replacement Cost on New Vehicles	Within 90 days of purchase
Rental Auto Gap Coverage	See form

INSURANCE COMPANY
6101 ANACAPRI BLVD., LANSING, MI 48917-3999

AGENCY ALLIANT INSURANCE SERVICES INC
03-1100-00 MKT TERR 007 (419) 794-4724

NAMED INSURED JACKSONVILLE PORT AUTHORITY

ADDRESS 2831 TALLEYRAND AVE
JACKSONVILLE FL 32206-3417

COMMERCIAL AUTO POLICY DECLARATIONS
STANDARD PROGRAM

Renewal Effective 04-06-2024

POLICY NUMBER 52-785-630-00

Company Use 05-04-FL-2004

Company Bill

POLICY TERM

12:01 a.m. to 12:01 a.m.
04-06-2024 04-06-2025

In consideration of payment of the premium shown below, this policy is renewed. Please attach this Declarations and attachments to your policy. If you have any questions, please consult with your agent.

0768

Scheduled Drivers List

Listed below are drivers currently scheduled on this policy. Please compare the list with your current records and contact your agent with any changes that need to be made. We will update the list accordingly for the next renewal.

Name: Last	First	Age	State
GREEN	ERIC	59	FL
LEWIS	DERRICK	58	FL
BLANTON	BRANDON	42	FL

58428 (8-21)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA - AUTO MEDICAL PAYMENTS COVERAGE

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

A. COVERAGE

1. **We** will pay Auto Medical Payments Coverage to or for any **insured** who accidentally sustains **bodily injury** caused by an **accident**.
 2. Auto Medical Payments Coverage shall consist of:
 - a. (1) Medical Benefits, meaning the following schedule of maximum charges specified in the Florida Motor Vehicle No-Fault Law, section 627.736, Florida Statutes, for **medically necessary** medical, surgical, X-ray, dental and rehabilitative services, including prosthetic devices and **medically necessary** ambulance, hospital and nursing services, if the injured person receives initial services and care within 14 days after the **accident** involving a covered **auto**.
 - (a) For emergency transport and treatment by providers licensed under chapter 401, Florida Statutes, 200 percent of Medicare.
 - (b) For emergency services and care provided by a hospital licensed under chapter 395, Florida Statutes, 75 percent of the hospital's usual and customary charges.
 - (c) For emergency services and care as defined by s. 395.002, Florida Statutes, provided in a facility licensed under chapter 395, Florida Statutes, rendered by a physician or dentist, and related hospital inpatient services rendered by a physician or dentist, the usual and customary charges in the community.
 - (d) For hospital inpatient services, other than emergency services and care, 200 percent of the Medicare Part A prospective payment applicable to the specific hospital providing the inpatient services.
 - (e) For hospital outpatient services, other than emergency services and care, 200 percent of the Medicare Part A Ambulatory Payment Classification for the specific hospital providing the outpatient services.
 - (f) For all other medical services, supplies, and care, 200 percent of the allowable amount under:
 - 1) The participating physicians fee schedule of Medicare Part B, except as provided in 2) and 3) below.
 - 2) Medicare Part B, in the case of services, supplies, and care provided by ambulatory surgical centers and clinical laboratories.
 - 3) The Durable Medical Equipment Prosthetics/Orthotics and Supplies fee schedule of Medicare Part B, in the case of durable medical equipment.However, if such services, supplies, or care is not reimbursable under Medicare Part B, as provided in (f) above, **we** will limit reimbursement to the maximum reimbursable allowance under workers' compensation, as determined under s. 440.13, Florida Statutes, and rules adopted thereunder which are in effect at the time such services, supplies, or care is provided. Services, supplies, or care that is not reimbursable under Medicare or workers' compensation will not be reimbursed by **us**.
- (2) For purposes of the above, the applicable fee schedule or payment limitation under Medicare is the fee schedule or payment limitation in effect on March 1 of the **service year** in which the services, supplies, or care is rendered and

for the area in which such services, supplies, or care is rendered, and the applicable fee schedule or payment limitation applies to services, supplies or care rendered during that **service year**, notwithstanding any subsequent change made to the fee schedule or payment limitation, except that it will not be less than the allowable amount under the applicable schedule of Medicare Part B for 2007 for medical services, supplies, and care subject to Medicare Part B.

We shall use the Medicare coding policies and payment methodologies of the federal Centers for Medicare and Medicaid Services, including applicable modifiers, to determine the appropriate amount of reimbursement for medical services, supplies or care.

However, the Medical Benefits shall provide reimbursement only for such:

- (a) Initial services and care that are lawfully provided, supervised, ordered, or prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, or an advanced practice registered nurse registered under chapter 464, Florida Statutes or that are provided in a hospital or in a facility that owns, or is wholly owned by, a hospital. Initial services and care may also be provided by a person or entity licensed under part III of chapter 401, Florida Statutes, which provides emergency transportation and treatment; and
- (b) Followup services and care referred by the health care provider of the initial services and care, consistent with the underlying medical diagnosis rendered in the initial services and care that are lawfully provided, supervised, ordered or prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, or an advanced practice registered nurse registered under chapter 464 Florida Statutes, or, to the extent permitted

by applicable law and under the supervision of such physician, osteopathic physician, chiropractic physician, or dentist, by a physician assistant licensed under chapter 458 or chapter 459, Florida Statutes, or an advanced practice registered nurse licensed under chapter 464, Florida Statutes. Followup services and care may also be provided by the following persons or entities:

- 1) A hospital or ambulatory surgical center licensed under chapter 395, Florida Statutes.
- 2) An **entity wholly owned** by one or more physicians licensed under chapter 458 or chapter 459, Florida Statutes, chiropractic physicians licensed under chapter 460, Florida Statutes, advanced practice registered nurses registered under chapter 464, Florida Statutes, or dentists licensed under chapter 466, Florida Statutes, or by such practitioners and the spouse, parent, child, or sibling of such practitioners.
- 3) An entity that owns or is wholly owned, directly or indirectly, by a hospital or hospitals.
- 4) A physical therapist licensed under chapter 486, Florida Statutes, based upon a referral by a provider described in (b) immediately above.
- 5) A health care clinic licensed under part X of chapter 400, Florida Statutes, which is accredited by an accrediting organization whose standards incorporate comparable regulations required by this state, or:
 - a) Has a medical director licensed under chapter 458, Florida Statutes, chapter 459, Florida Statutes, or chapter 460, Florida Statutes;
 - b) Has been continuously licensed for more than 3 years or is a publicly traded corporation that issues securities traded on an exchange registered with the

United States Securities and Exchange Commission as a national securities exchange; and

- c) Provides at least four of the following medical specialties:
- i General medicine.
 - ii Radiography.
 - iii Orthopedic medicine.
 - iv Physical medicine.
 - v Physical therapy.
 - vi Physical rehabilitation.
 - vii Prescribing or dispensing outpatient prescription medication.
 - viii Laboratory services.

Medical Benefits do not include massage therapy as defined in s. 480.033, Florida Statutes, or acupuncture as defined in s. 457.102, Florida Statutes, regardless of the person, entity, or licensee providing massage therapy or acupuncture, and a licensed massage therapist or licensed acupuncturist may not be reimbursed for Medical Benefits under this provision.

- b. Reasonable funeral service expenses equal to the lesser of \$5,000 or the remainder of the unused Auto Medical Payments Coverage per person. Reasonable funeral service expenses must be incurred within three years of the **accident** resulting in death and reported to **us** within one year of the funeral. **We** may pay reasonable funeral service expenses to the executor or administrator of the deceased, to any of the deceased's relatives by blood, legal adoption, or marriage, or to any person appearing to **us** to be equitably entitled to such benefits.

B. WHO IS AN INSURED

1. Anyone **occupying** a covered **auto**; and
2. If **you** are an individual and a covered **auto** is a **private passenger auto** to which Auto Medical Payments applies:
 - a. **You**; and
 - b. Any **family member**, who does not own an **auto** (that is not a **trailer**) unless shown in the Declarations when struck by or while **occupying** an **auto** not owned by, furnished or available for regular use by **you** or anyone living with **you**.

C. EXCLUSIONS

Auto Medical Payments Coverage does not apply to:

1. **Bodily injury** expected or intended from the standpoint of the **insured**.
2. **Bodily injury** to an **insured** while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering or testing **autos**, unless that business is **yours**.
3. **Bodily injury** arising out of the use of any covered **auto** as a public mode of transportation of people. This exclusion does not apply to car pooling on a share the expense basis.
4. **Bodily injury** arising out of the use of any covered **auto** while participating in any prearranged racing, prearranged high speed driving, prearranged competitive driving or prearranged demolition event. This exclusion also applies while any covered **auto** is preparing for or practicing for any of the previously mentioned events.
5. **Bodily injury** to any person **occupying** a covered **auto** without a reasonable belief of **your** permission to do so.
6. **Bodily injury** arising directly or indirectly out of:
 - a. War, including undeclared or civil war;
 - b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.
7. Any obligation for which the **insured** or the **insured's** insurer may be held liable under any workers compensation, disability benefits or unemployment compensation law or any similar law.
8. **Bodily injury** to an **insured occupying** or struck by a covered **auto** located for use as a residence or premises.
9. **Bodily injury** to any person injured while committing a felony.
10. **Bodily injury** sustained by any **insured** while **occupying** or when struck by any vehicle that is a covered **auto** while such **auto** is:
 - a. Enrolled in an electronic or written **auto** sharing program agreement; and
 - b. Being used in connection with such **auto** sharing program.
 If **you** are an individual, this exclusion does not apply to **you** or any **family member** while using such **auto**.

D. LIMIT OF INSURANCE

1. The Limit of Insurance shown in the Declarations for each person is the most **we** will pay to

or for any person in one **accident** for medical benefits and reasonable funeral service expenses.

2. Subject to **D.1.** above, the most **we** will pay for reasonable funeral service expenses is \$5,000 per person.
3. The Limit of Insurance is not increased because of the number of:
 - a. **Covered autos;**
 - b. **Insureds;**
 - c. Premiums paid;
 - d. Claims made or **suits** brought;
 - e. Persons injured; or
 - f. Vehicles involved in the **accident**.
4. **We** will not pay any amount for medical or funeral services that duplicate amounts paid or payable by other insurance of any type.
5. If **you**, or a **family member** who does not own an **auto** unless shown in the Declarations, sustain **bodily injury** while not **occupying** an **auto**, the maximum amount of coverage available for such **bodily injury** is the highest single limit of insurance for this coverage applying to any **auto** with respect to which the injured person is an **insured**.

E. OTHER INSURANCE

The coverage afforded by this endorsement shall be excess over benefits paid or payable under the Florida Motor Vehicle No-Fault Law. However, when the injured person is eligible for Personal Injury Protection Benefits, coverage shall only apply to the extent coverage is afforded under the Personal Injury Protection Benefits of this policy and is not payable under the Personal Injury Protection Benefits of this policy due to:

1. The 80% limitation; or
2. The maximum aggregate limitation.

F. FRAUD

Benefits are not due or payable to or on the behalf of an insured person if that person has committed, by a material act or omission, insurance fraud relating to Auto Medical Payments Coverage under this policy, if the fraud is admitted to in a sworn statement by the **insured** or established in a court of competent jurisdiction. Any insurance fraud voids all coverage arising from the claim related to such fraud under the Auto Medical Payments Coverage of the insured person who committed the fraud, irrespective of whether a portion of the insured person's claim may be legitimate, and any benefits paid before the discovery of the fraud is recoverable by **us** in its entirety from the person who committed insurance fraud. The prevailing party is entitled to its

costs and attorney fees in any action in which it prevails in **our** action to enforce **our** right of recovery under this paragraph.

If **we** have a reasonable belief that a fraudulent insurance act, for the purposes of coverage under this coverage form, has been committed, **we** shall notify the claimant, in writing, within 30 days after submission of the claim that the claim is being investigated for suspected fraud. Beginning at the end of the initial 30-day period, **we** have an additional 60 days to conduct fraud investigation. No later than 90 days after the submission of the claim, **we** must deny the claim or pay the claim with simple interest. Interest shall be assessed from the date the claim was submitted until the day the claim is paid. All claims denied for suspected fraudulent insurance acts shall be reported to the Division of Investigative and Forensic Services.

- G. The following provisions apply in addition to those contained in **SECTION V – CONDITIONS, A. LOSS CONDITIONS, 1. Duties in the Event of Accident, Claim, Suit or Loss** of the policy.

MEDICAL REPORTS; PROOF OF CLAIM; REHABILITATION NOTICE

As soon as practicable, the injured person or someone on his or her behalf shall send **us** written proof of claim, under oath if required. This must include full details of the **bodily injury**, treatment, and rehabilitation received and considered. It must also include such other information as may help **us** determine the amount **we** must pay. At **our** request the injured person or someone acting on the behalf of the injured person must authorize **us** to obtain medical and other records which pertain to the **bodily injury**. The injured person must, at **our** expense, submit to mental or physical examinations by doctors **we** select as often as **we** may reasonably require. An injured person's refusal to submit to or failure to appear at two examinations raises a rebuttable presumption that the refusal or failure was unreasonable. If an injured person unreasonably refuses to submit to or fails to appear at an examination, **we** are no longer liable for subsequent Medical Benefits.

EXAMINATION UNDER OATH

An injured person seeking benefits under Auto Medical Payments Coverage must comply with the terms of this policy, which include, but are not limited to, submitting to an examination under oath. The scope of questioning during the examination is limited to relevant information or information that could reasonably be expected to lead to relevant information. Compliance with the examination under oath requirement is a condition precedent to receiving benefits.

H. SECTION VI – DEFINITIONS is amended.

The following definitions are added for the purposes of this endorsement only.

- 1. Entity wholly owned** means a proprietorship, group practice, partnership, or corporation that provides health care services rendered by licensed health care practitioners and in which licensed health care practitioners are the business owners of all aspects of the business entity, including, but not limited to, being reflected as the business owners on the title or lease of the physical facility, filing taxes as the business owners, being account holders on the entity's bank account, being listed as the principals on all incorporation documents required by this state, and having ultimate authority over all personnel and compensation decisions relating to the entity. However, this definition does not apply to an entity that is wholly owned, directly or indirectly, by a hospital licensed under chapter 395, Florida Statutes.
- 2. Medically necessary** means a medical service or supply that a prudent physician would provide for the purpose of preventing, diagnosing or treating an illness, injury, disease or symptom in a manner that is:
 - a.** In accordance with generally accepted standards of medical practice;
 - b.** Clinically appropriate in terms of type, frequency, extent, site and duration; and
 - c.** Not primarily for the convenience of the patient, physician or other health care provider.
- 3. Occupying** means being in or on an **auto** as a passenger or operator, or being engaged in the immediate acts of entering, boarding or alighting from an **auto**.
- 4. Service year** means the period from March 1 through the end of February of the following year.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA - PERSONAL INJURY PROTECTION

For a covered **auto** licensed or principally garaged in Florida, this endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

With respect to coverage provided by this endorsement, the provisions of the policy apply unless modified by the endorsement.

We agree with the **named insured**, subject to all the provisions of this endorsement and to all of the provisions of the policy except as modified herein, as follows that:

A. COVERAGE

We will pay Personal Injury Protection benefits in accordance with the Florida Motor Vehicle No-fault Law to or for an **insured** who sustains **bodily injury** in an **accident** arising out of the ownership, maintenance or use of a **motor vehicle**. Personal Injury Protection benefits consist of the following:

1. Medical Benefits

- a. Medical Benefits, meaning 80% of the following schedule of maximum charges specified in the Florida Motor Vehicle No-Fault Law, section 627.736, Florida Statutes, for **medically necessary** medical, surgical, X-ray, dental and rehabilitative services, including prosthetic devices and **medically necessary** ambulance, hospital and nursing services, if the injured person receives initial services and care within 14 days after the **motor vehicle** accident:
 - (1) For emergency transport and treatment by providers licensed under chapter 401, Florida Statutes, 200 percent of Medicare.
 - (2) For emergency services and care provided by a hospital licensed under chapter 395, Florida Statutes, 75 percent of the hospital's usual and customary charges.
 - (3) For emergency services and care as defined by s. 395.002, Florida Statutes, provided in a facility licensed under chapter 395, Florida Statutes, rendered by a physician or dentist, and related hospital inpatient services rendered by a physician or dentist, the

usual and customary charges in the community.

- (4) For hospital inpatient services, other than emergency services and care, 200 percent of the Medicare Part A prospective payment applicable to the specific hospital providing the inpatient services.
- (5) For hospital outpatient services, other than emergency services and care, 200 percent of the Medicare Part A Ambulatory Payment Classification for the specific hospital providing the outpatient services.
- (6) For all other medical services, supplies, and care, 200 percent of the allowable amount under:
 - (a) The participating physicians fee schedule of Medicare Part B except as provided in (b) and (c) below.
 - (b) Medicare Part B, in the case of services, supplies and care provided by ambulatory surgical centers and clinical laboratories.
 - (c) The Durable Medical Equipment Prosthetics/Orthotics and Supplies fee schedule of Medicare Part B, in the case of durable medical equipment.

However, if such services, supplies, or care is not reimbursable under Medicare Part B, as provided in (6) above, **we** will limit reimbursement to 80% of the maximum reimbursable allowance under workers compensation, as determined under s. 440.13, Florida Statutes, and

rules adopted thereunder which are in effect at the time such services, supplies, or care is provided. Services, supplies, or care that is not reimbursable under Medicare or workers compensation will not be reimbursed by **us**.

- b.** For purposes of the above, the applicable fee schedule or payment limitation under Medicare is the fee schedule or payment limitation in effect on March 1 of the **service year** in which the services, supplies, or care is rendered and for the area in which such services, supplies, or care is rendered, and the applicable fee schedule or payment limitation applies to services, supplies or care rendered during that **service year**, notwithstanding any subsequent change made to the fee schedule or payment limitation, except that it will not be less than the allowable amount under the applicable schedule of Medicare Part B for 2007 for medical services, supplies, and care subject to Medicare Part B.

We shall use the Medicare coding policies and payment methodologies of the federal Centers for Medicare and Medicaid Services, including applicable modifiers, to determine the appropriate amount of reimbursement for medical services, supplies or care.

However, the Medical Benefits shall provide reimbursement only for such:

- (1)** Initial services and care that are lawfully provided, supervised, ordered, or prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, or an advanced practice registered nurse registered under chapter 464, Florida Statutes or that are provided in a hospital or in a facility that owns, or is wholly owned by, a hospital. Initial services and care may also be provided by a person or entity licensed under part III of chapter 401, Florida Statutes, which provides emergency transportation and treatment; and
- (2)** Followup services and care referred by the health care provider of the initial services and care, consistent with the underlying medical diagnosis rendered in the initial services and care that are lawfully provided, supervised, ordered or

prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, or an advanced practice registered nurse registered under chapter 464, Florida Statutes, or, to the extent permitted by applicable law and under the supervision of such physician, osteopathic physician, chiropractic physician, or dentist, by a physician assistant licensed under chapter 458 or chapter 459, Florida Statutes, or an advanced practice registered nurse licensed under chapter 464, Florida Statutes. Followup services and care may also be provided by the following persons or entities:

- (a)** A hospital or ambulatory surgical center licensed under chapter 395, Florida Statutes.
- (b)** An **entity wholly owned** by one or more physicians licensed under chapter 458 or chapter 459, Florida Statutes, chiropractic physicians licensed under chapter 460, Florida Statutes, advanced practice registered nurses registered under chapter 464, Florida Statutes, or dentists licensed under chapter 466, Florida Statutes or by such practitioners and the spouse, parent, child, or sibling of such practitioners.
- (c)** An entity that owns or is wholly owned, directly or indirectly, by a hospital or hospitals.
- (d)** A physical therapist licensed under chapter 486, Florida Statutes, based upon a referral by a provider described in **(2)** immediately above.
- (e)** A health care clinic licensed under part X of chapter 400, Florida Statutes, which is accredited by an accrediting organization whose standards incorporate comparable regulations required by this state, or:
 - 1)** Has a medical director licensed under chapter 458, Florida Statutes, chapter 459, Florida Statutes, or chapter 460, Florida Statutes;
 - 2)** Has been continuously licensed for more than 3 years or is a publicly traded corporation that issues securities traded on an exchange registered with the United States

Securities and Exchange Commission as a national securities exchange; and

- 3) Provides at least four of the following medical specialties:
 - a) General medicine.
 - b) Radiography.
 - c) Orthopedic medicine.
 - d) Physical medicine.
 - e) Physical therapy.
 - f) Physical rehabilitation.
 - g) Prescribing or dispensing outpatient prescription medication.
 - h) Laboratory services.

Medical Benefits, do not include massage therapy as defined in s. 480.033, Florida Statutes, or acupuncture as defined in s. 457.102, Florida Statutes, regardless of the person, entity, or licensee providing massage therapy or acupuncture, and a licensed massage therapist or licensed acupuncturist may not be reimbursed for Medical Benefits under this provision.

2. Disability Benefits

a. Replacement Services Expenses

With respect to the period of disability of the injured person, all expenses reasonably incurred in obtaining from others ordinary and necessary services in lieu of those that, but for such injury, the injured person would have performed without income for the benefit of his or her household, subject to the total aggregate limit;

b. Wage Loss

With respect to the period of disability of the injured person, 60% of any loss of income and earning capacity from inability to work proximately caused by the injury sustained by the injured person, subject to the total aggregate limit; and

3. Death Benefits

Death Benefits are in addition to the Medical Benefits, Replacement Services Expenses and Wage Loss provided under this policy. **We** may pay Death Benefits to the executor or administrator of the deceased, to any of the deceased's relatives by blood, legal adoption, or marriage, or to any person appearing to **us** to be equitably entitled to such benefits.

B. WHO IS AN INSURED

1. The **named insured**.
2. If the **named insured** is an individual, any **family member**.

3. Any other person while **occupying** a covered **motor vehicle** with the **named insured's** consent.
4. A **pedestrian** if the **pedestrian** is struck by a covered **motor vehicle**.

C. EXCLUSIONS

We will not pay Personal Injury Protection benefits for **bodily injury**:

1. Sustained by the **named insured** or any **family member** while **occupying** any **motor vehicle** owned by the **named insured** that is not a covered **motor vehicle**;
2. Sustained by any person while operating the covered **motor vehicle** without the **named insured's** expressed or implied consent;
3. Sustained by any person, if such person's conduct contributed to his or her **bodily injury** under any of the following circumstances:
 - a. Causing **bodily injury** to himself or herself intentionally; or
 - b. While committing a felony;
4. To any **pedestrian**, other than the **named insured** or any **family member**, not a legal resident of the state of Florida;
5. To any person, other than the **named insured**, if that person is the **owner** of a **motor vehicle** for which security is required under the Florida Motor Vehicle No-fault Law;
6. To any person, other than the **named insured**, or any **family member**, who is entitled to Personal Injury Protection benefits from the owner of a **motor vehicle** that is not a covered **motor vehicle** under this insurance or from the **owner's** insurer; or
7. To any person who sustains **bodily injury** while **occupying** a **motor vehicle** located for use as a residence or premises.

D. LIMIT OF INSURANCE

1. Regardless of the number of persons insured, policies or bonds applicable, premiums paid, vehicles involved or claims made, the total aggregate limit of Personal Injury Protection benefits, available under the Florida Motor Vehicle No-fault Law from all sources combined, including this policy, for or on behalf of any one person who sustains **bodily injury** as the result of any one **accident**, shall be \$10,000 when it has been determined, by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, a physician assistant licensed under chapter 458 or chapter 459, Florida Statutes, or

an advanced practice registered nurse licensed under chapter 464, Florida Statutes, that the injured person had an **emergency medical condition**. However, Medical Benefits shall be limited to \$2,500 when:

- a. A health care provider, as described in **A. COVERAGE, 1.b.(1)** which provided the initial services and care; or
- b. A health care provider, as described in **A. COVERAGE, 1.b.(2)** which provided the followup services and care

did not determine that the injured person had an **emergency medical condition**.

2. **We** will pay no more than \$5,000 per individual for Death Benefits. Death Benefits are in addition to the Medical and Disability Benefits provided under this policy.
3. Any amount paid under this coverage will be reduced by the amount of benefits an injured person has been paid or is entitled to be paid for the same elements of **loss** under any workers compensation law.
4. If Personal Injury Protection benefits, under the Florida Motor Vehicle No-fault Law, have been received from any insurer for the same elements of loss and expense benefits available under this policy, **we** will not make duplicate payments to or for the benefit of the injured person. The insurer paying the benefits shall be entitled to recover from **us** its pro rata share of the benefits paid and expenses incurred in handling the claim.
5. The deductible amount shown in the Declarations will be deducted from the total amount of expenses and losses listed in Paragraphs **A.1.**, **A.2.** and **A.3.** of this endorsement before the application of any percentage limitation for each **insured** to whom the deductible applies. Such deductible will apply:
 - a. Only to the **named insured**, if designated PIP Deductible (X); or
 - b. Only to the **named insured** and each dependent **family member**, if designated PIP Deductible (Y)
 as shown in the Declarations under Personal Injury Protection.
 The deductible does not apply to the Death Benefit.
6. Any amount paid under this coverage for Medical Benefits shall be limited by the medical fee schedule as provided by this policy.

E. CHANGES IN CONDITIONS

SECTION V - CONDITIONS is amended for the purposes of this endorsement only.

1. **Duties In The Event Of Accident, Claim, Suit Or Loss** is deleted and replaced by the following:
 Compliance with the following duties is a condition precedent to receiving benefits: In the event of an **accident**, the **named insured** must give **us** or **our** authorized representative prompt written notice of the **accident**. If any injured person or his or her legal representative institutes a legal action to recover damages for **bodily injury** against a third party, a copy of the summons, complaint or other process served in connection with that legal action must be forwarded to **us** as soon as possible by the injured person or his or her legal representative.
 A person seeking personal injury protection benefits must, as soon as possible, give **us** written proof of claim, under oath if required, containing full particulars concerning the injuries and treatment received and/or contemplated, and send **us** any other information that will assist **us** in determining the amount due and payable.
 A person seeking personal injury protection benefits must submit to an examination under oath. The scope of questioning during the examination under oath is limited to relevant information or information that could reasonably be expected to lead to relevant information.
2. **Legal Action Against Us** is deleted and replaced by the following:
Legal Action Against Us
 - a. No legal action may be brought against **us** until there has been full compliance with all terms of this policy. In addition, no legal action may be brought against **us**:
 - (1) Until the claim for benefits is overdue in accordance with Paragraph **F.2.** of this endorsement; and
 - (2) Until **we** are provided with a demand letter in accordance with the Florida Motor Vehicle No-fault Law sent to **us** via U.S. certified or registered mail; and
 - (3) With respect to the overdue claim specified in the demand letter, if, within 30 days of receipt of the demand letter, **we**:
 - (a) Pay the overdue claim; or
 - (b) Agree to pay for future treatment not yet rendered in accordance with the requirements of the Florida Motor Vehicle No-fault Law.
 - b. If legal action is brought against **us**, all claims related to the same health care provider or facility shall be brought in a single

action, unless good cause can be shown why such claims should be brought separately.

3. **Our Right to Recover Payments** is deleted and replaced by the following:

Our Right to Recover Payments

Unless prohibited by the Florida Motor Vehicle No-fault Law, in the event of payment to or for the benefit of any injured person under this coverage:

- a. **We** will be reimbursed for those payments, not including reasonable attorneys' fees and other reasonable expenses, from the proceeds of any settlement or judgment resulting from any right of recovery of the injured person against any person or organization legally responsible for the **bodily injury** from which the payment arises. **We** will also have a lien on those proceeds.
- b. If any person to or for whom **we** pay benefits has rights to recover benefits from another, those rights are transferred to **us**. That person must do everything necessary to secure **our** rights and must do nothing after loss to impair them.
- c. The insurer providing Personal Injury Protection benefits on a private passenger **motor vehicle**, as defined in the Florida Motor Vehicle No-fault Law, shall be entitled to reimbursement to the extent of the payment of Personal Injury Protection benefits from the **owner** or the insurer of the **owner** of a commercial **motor vehicle**, as defined in the Florida Motor Vehicle No-fault Law, if such injured person sustained the injury while **occupying**, or while a **pedestrian** through being struck by, such commercial **motor vehicle**. However, such insurer's right of reimbursement under this Paragraph **c**. does not apply to an **owner** or registrant of a **motor vehicle** used as a taxicab.

4. **Concealment, Misrepresentation or Fraud** is deleted and replaced by the following:
Concealment, Misrepresentation or Fraud
We do not provide coverage under this endorsement for an **insured** if that **insured** has committed, by a material act or omission, insurance fraud relating to personal injury protection coverage under this form, if fraud is admitted to in a sworn statement by the **insured** or if the fraud is established in a court of competent jurisdiction. Any insurance fraud voids all personal injury protection coverage arising from the claim with respect to the **insured** who committed the fraud.

Any benefits paid prior to the discovery of the fraud are recoverable from that **insured**.

5. **Policy Term and Territory** is deleted and replaced by the following:

Policy Term and Territory

The insurance under this section applies only to **accidents** which occur during the policy term:

- a. In the state of Florida;
- b. As respects the **named insured** or any **family member**, while **occupying** the covered **motor vehicle** outside the state of Florida but within the United States of America, its territories or possessions or Canada; and
- c. As respects the **named insured**, while **occupying** a **motor vehicle** of which a **family member** is the **owner** and for which security is maintained under the Florida Motor Vehicle No-Fault Law outside the state of Florida but within the United States of America, its territories or possessions or Canada.

F. ADDITIONAL CONDITIONS

SECTION V - CONDITIONS is amended for the purposes of this endorsement only. The following conditions are added:

1. Mediation

- a. In any claim filed by an **insured** with **us** for:
 - (1) **Bodily injury** in an amount of \$10,000 or less, arising out of the ownership, operation, use or maintenance of a covered **auto**;
 - (2) **Property damage** in any amount, arising out of the ownership, operation, maintenance or use of a covered **auto**;
 - or
 - (3) **Loss** to a covered **auto** or its equipment, in any amount
 either party may make a written demand for mediation of the claim prior to the institution of litigation.
- b. A written request for mediation must be filed with the Florida Department of Financial Services on an approved form, which may be obtained from the Florida Department of Financial Services.
- c. The request must state:
 - (1) Why mediation is being requested.
 - (2) The issues in dispute, which are to be mediated.
- d. The Florida Department of Financial Services will randomly select mediators. Each party may reject one mediator, either before or after the opposing side has rejected a mediator. The mediator will notify the

parties of the date, time and place of the mediation conference. The mediation conference will be held within 45 days of the request for mediation. The conference will be held by telephone, if feasible.

Participants in the mediation conference must have the authority to make a binding decision, and must mediate in good faith. Each party will bear the expenses of the mediation equally, unless the mediator determines that one party has not mediated in good faith.

- e. Only one mediation may be requested for each claim unless all parties agree to further mediation. A party demanding mediation shall not be entitled to demand or request mediation after a suit is filed relating to the same facts already mediated.
- f. The mediation shall be conducted as an informal process and formal rules of evidence and procedures need not be observed.

2. **Payment of Benefits**

Personal Injury Protection benefits payable under this policy, whether the full or partial amount, may be overdue if not paid within 30 days after **we** are furnished with written notice of the covered loss and the amount of the covered loss in accordance with the Florida Motor Vehicle No-fault Law.

However, if **we** have a reasonable belief that a fraudulent insurance act has been committed relating to Personal Injury Protection coverage under this policy, **we** will notify the **insured** in writing, within 30 days after the submission of the claim, that the claim is being investigated for suspected fraud. No later than 90 days after the submission of the claim, **we** will either deny or pay the claim, in accordance with the Florida Motor Vehicle No-fault Law.

If **we** pay only a portion of a claim or reject a claim because of an alleged error in the claim, **we**, at the time of the partial payment or rejection, will provide an itemized specification or explanation of benefits because of the specified error. Upon receiving the specification or explanation, the person making the claim, at the person's option and without waiving any other legal remedy for payment, has 15 days to submit a revised claim, which will be considered a timely submission of written notice of a claim.

3. **Modification of Policy Coverages**

Any Auto Medical Payments Coverage and any Uninsured Motorist Coverage afforded by the policy shall be excess over any Personal Injury Protection benefits paid or payable.

Regardless of whether the full amount of Personal Injury Protection benefits has been exhausted, any Medical Payments Coverage afforded by the policy shall pay the portion of any claim for personal injury protection medical expenses which are otherwise covered but not payable because of the limitation of 80% of medical expense benefits but shall not be payable for the amount of the deductible selected.

4. **Medical Reports and Examinations; Payment of Claim Withheld**

As soon as practicable, the person making the claim shall submit to mental and physical examinations at **our** expense when and as often as **we** may reasonably require and a copy of the medical report shall be forwarded to such person if requested.

At **our** request, the person making the claim or someone acting on behalf of such person must authorize **us** to obtain medical and other records which pertain to the **bodily injury**.

If the person unreasonably refuses to submit to, or fails to appear at, an examination, **we** will not be liable for subsequent Personal Injury Protection benefits. Such person's refusal to submit to, or failure to appear at, two examinations, raises a rebuttable presumption that such person's refusal or failure was unreasonable.

Whenever a person making a claim as a result of an injury sustained while committing a felony is charged with committing that felony, **we** shall withhold benefits until, at the trial level, the prosecution makes a formal entry on the record that it will not prosecute the case against the person, the charge is dismissed or the person is acquitted.

5. **Provisional Premium**

In the event of any change in the rules, rates, rating plan, premiums or minimum premiums applicable to the insurance afforded, because of an adverse judicial finding as to the constitutionality of any provisions of the Florida Motor Vehicle No-fault Law providing for the exemption of persons from tort liability, the premium shown in the Declarations for any Liability, Medical Payments and Uninsured Motorist insurance shall be deemed provisional and subject to recomputation. If this policy is a renewal policy, such recomputation shall also include a determination of the amount of any return premium previously credited or refunded to the **named insured** pursuant to the Florida Motor Vehicle No-fault Law with respect to insurance afforded under a previous policy.

If the final premium thus recomputed exceeds the premium shown in the Declarations, the **named insured** shall pay to **us** the excess as well as the amount of any return premium previously credited or refunded.

6. **Special Provisions For Rented Or Leased Vehicles**

Notwithstanding any provision of this coverage to the contrary, if a person is injured while **occupying**, or through being struck by, a **motor vehicle** rented or leased under a rental or lease agreement which does not specify otherwise in language required by FLA. STAT. SECTION 627.7263(2) in at least 10-point type on the face of the agreement, the Personal Injury Protection benefits available under the Florida Motor Vehicle No-fault Law and afforded under the lessor's policy shall be primary.

7. **Insured's Right To Personal Injury Protection Information**

- a. In a dispute between **us** and an **insured**, or between **us** and an assignee of the **insured's** Personal Injury Protection benefits, **we** will, upon request, notify such **insured** or assignee that the limits for Personal Injury Protection have been reached. **We** will provide such information within 15 days after the limits for Personal Injury Protection have been reached.
- b. If legal action is commenced, **we** will, upon request, provide an **insured** with a copy of a log of Personal Injury Protection benefits paid by **us** on behalf of the **insured**. **We** will provide such information within 30 days of receipt of the request for the log from the **insured**.

G. **ADDITIONAL DEFINITIONS**

SECTION VI - DEFINITIONS is amended. As used in this endorsement only:

1. **Emergency medical condition** means a medical condition manifesting itself by acute symptoms of sufficient severity, which may include severe pain, such that the absence of immediate medical attention could reasonably be expected to result in any of the following:
 - a. Serious jeopardy to **insured's** health;
 - b. Serious impairment to bodily functions; or
 - c. Serious dysfunction of any bodily organ part.
2. **Entity wholly owned** means a proprietorship, group practice, partnership, or corporation that provides health care services rendered by licensed health care practitioners and in which licensed health care practitioners are the business owners of all aspects of the business entity, including, but not limited to, being reflected

as the business owners on the title or lease of the physical facility, filing taxes as the business owners, being account holders on the entity's bank account, being listed as the principals on all incorporation documents required by this state, and having ultimate authority over all personnel and compensation decisions relating to the entity. However, this definition does not apply to an entity that is wholly owned, directly or indirectly, by a hospital licensed under chapter 395, Florida Statutes.

3. **Medically necessary** refers to a medical service or supply that a prudent physician would provide for the purpose of preventing, diagnosing or treating an illness, injury, disease or symptom in a manner that is:
 - a. In accordance with generally accepted standards of medical practice;
 - b. Clinically appropriate in terms of type, frequency, extent, site and duration; and
 - c. Not primarily for the convenience of the patient, physician or other health care provider.
4. **Motor vehicle** means any self-propelled vehicle with four or more wheels which is of a type both designed and required to be licensed for use on the highways of Florida and any trailer or semi-trailer designed for use with such vehicle. However, **motor vehicle** does not include:
 - a. A mobile home;
 - b. Any **motor vehicle** which is used in mass transit, other than public school transportation, and designed to transport more than five passengers exclusive of the operator of the motor vehicle and which is owned by a municipality, a transit authority or a political subdivision of the state.
5. **Named insured** means the person or organization named in the Declarations of the policy and, if an individual, shall include the spouse if a resident of the same household.
6. **Occupying** means in or upon or entering into or alighting from.
7. **Owner** means a person or organization who holds the legal title to a **motor vehicle** and also includes:
 - a. A debtor having the right to possession, in the event a **motor vehicle** is the subject of a security agreement;
 - b. A lessee having the right to possession, in the event a **motor vehicle** is the subject of a lease with option to purchase and such lease agreement is for a period of six months or more; and
 - c. A lessee having the right to possession, in the event a **motor vehicle** is the subject of

a lease without option to purchase, and such lease is for a period of six months or more, and the lease agreement provides that the lessee shall be responsible for securing insurance.

- 8. Pedestrian** means a person while not an occupant of any self-propelled vehicle.

- 9. Service year** means the period from March 1 through the end of February of the following year.

All other policy terms and conditional apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

1. Supplementary Payments

SECTION II - COVERED AUTOS LIABILITY COVERAGE, A. COVERAGE, 2. Coverage Extensions is amended.

Paragraphs **(3)** and **(7)** of **a. Supplementary Payments** are deleted and replaced by the following:

- (3)** Up to the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Supplementary Payments for the cost of bail bonds (including bonds for related traffic law violations) required because of an **accident we** cover. **We** will not apply for or furnish such bonds.
- (7)** All reasonable expenses incurred by an **insured** at **our** request, including actual loss of earnings up to the per day additional expenses limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Supplementary Payments.

2. Waiver of Collision Deductible for Collision with Another Auto-Owners Insured

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

Under paragraph 1., **b. Collision Coverage** is deleted and replaced by the following.

We will pay for **loss** to a covered **auto** or its **equipment or custom furnishings** under:

b. Collision Coverage

Caused by:

- (1)** The covered **auto's** collision with another object; or
- (2)** The covered **auto's** overturn.

When a deductible is shown in the Declarations for this coverage, **we** will reduce **our** payment by that amount. The deductible shall not apply when a covered **auto** is in a collision with another **auto**:

(a) **We** insure and which **you** do not own, rent or have in **your** care, custody or control; or

(b) Whose owner or operator has been identified; and

- 1)** Is legally responsible for the entire amount of the damage; and
- 2)** Is covered by a **property damage** liability policy or bond but only if the damage exceeds the deductible amount.

3. Waiver of Deductible for Covered Autos

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

a. Paragraph **1.a. Comprehensive Coverage** is amended. The following provision is added. When more than one covered **auto** is involved in the same **loss**, only one deductible shall apply. If the deductibles differ, **we** shall only apply the highest deductible.

b. Paragraph **1.b. Collision Coverage** is amended. The following provisions are added. When more than one covered **auto** is involved in the same **loss**, only one deductible shall apply. If the deductibles differ, **we** shall only apply the highest deductible.

When provision 2. Waiver of Collision Deductible For Collision With Another

Auto-Owners Insured of this endorsement also applies to the same **loss**, the deductible shall be further reduced to no deductible.

For purposes of this provision only, an **auto** and attached **trailer** shall be considered two covered **autos**.

4. Non-Owned Trailer Physical Damage

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

Under **3. Coverage Extensions**, paragraph **a. Trailers** is deleted and replaced by the following.

a. Trailers

The Comprehensive Coverage and Collision Coverage provided to a covered **auto** extend to certain **trailers you** do not own. The **trailer** must:

- (1) Be designed for use with the covered **auto**;
- (2) Be used with the covered **auto**; and
- (3) Be other than a **trailer** of the home, office, store, display, or passenger type.

Our limit of insurance shall not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Non-Owned Trailer Physical Damage in any one **loss**. No deductible applies to this coverage extension.

5. Personal Property

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

Under **3. Coverage Extensions**, paragraph **c. Personal Property** is deleted and replaced by the following.

c. Personal Property

The Comprehensive Coverage and the Collision Coverage provided to a covered **auto** will extend to **loss** to personal property contained in or on such **auto** as follows:

- (1) Comprehensive Coverage because of:

- (a) Fire;
- (b) Lightning; or
- (c) Theft or attempted theft if there are visible signs of someone breaking into such **auto** or the entire **auto** is stolen; or

- (2) Collision Coverage.

The personal property must be owned by **you**, a **family member** or **your employee**.

This coverage extension does not apply to:

- (a) Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals.
- (b) Tapes, discs, or other similar media designed for use with equipment described in (a) immediately above.
- (c) Any accessories used with the media or equipment described in (a) or (b) immediately above.
- (d) Money or jewelry.
- (e) Any device designed or used to:
 - 1) Detect speed-measuring equipment such as radar or laser detectors; or
 - 2) Elude or disrupt speed-measuring equipment such as a jamming apparatus.
- (f) Property specifically insured.

- (g) Any property covered under any other coverage extension within this endorsement.

Our limit of insurance under this coverage extension will not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Personal Property in any one **loss**. No deductible applies to this coverage extension.

6. Audio, Visual or Data Electronic Equipment
SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

The following coverage extension is added.

- a. We** will extend the Comprehensive Coverage and the Collision Coverage that apply to a covered **auto** to **loss** to:

- (1) Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals that is permanently installed in a covered **auto** and was not standard or optional equipment for the manufacturer of such covered **auto** for that make, model and model year.
- (2) Tapes, discs or other similar media designed for use with electronic equipment described in **a.(1)** above.
- (3) Any accessories used with the media or equipment described in **a.(1)** or **a.(2)** above.

- b. Our** limit under **a.(1)** above will not exceed the per loss limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Audio, Visual or Data Electronic Equipment in any one **loss** and supersedes any other limit for such coverage provided elsewhere within this policy. **Our** limit under **a.(2)** and **a.(3)** above combined will not exceed the per loss for media and accessories limit shown in that Declarations in any one **loss**. No deductible applies to this coverage extension.

- c.** This coverage extension does not apply to any property covered under any other coverage extension within this endorsement.

- d. B. EXCLUSIONS** is amended. Exclusion **1.** is deleted only as it applies to the coverage provided by this extension.

7. Business Personal Property
SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

The following coverage extension is added.

We will extend the Comprehensive Coverage and the Collision Coverage that apply to a covered **auto** to **loss** to business personal property contained in or on such **auto**. This coverage extension is subject to the following:

- a. The business personal property must be owned by **you**, a **family member** or **your employee**.
- b. Comprehensive Coverage is extended only for **loss** because of:
 - (1) Fire;
 - (2) Lightning; or
 - (3) Theft or attempted theft.

Unless the entire **auto** is stolen, there must be visible signs of someone breaking into the **auto** for **b.(3)** above to apply.

- c. This coverage extension does not apply to:
 - (1) Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals.
 - (2) Tapes, discs, or other similar media designed for use with equipment described in (1) immediately above.
 - (3) Any accessories used with the media or equipment described in (1) or (2) immediately above.
 - (4) Money or jewelry.
 - (5) Any device designed or used to:
 - (a) Detect speed-measuring equipment such as radar or laser detectors; or
 - (b) Elude or disrupt speed-measuring equipment such as a jamming apparatus.
 - (6) Property specifically insured.
 - (7) Any property covered under any other coverage extension within this endorsement.
- d. **Our** limit of insurance for any one **loss** under this coverage extension shall not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Business Personal Property. A deductible applies to this coverage extension. **We** will reduce **our** payment by such deductible amount shown in that Declarations.

8. **Hired Autos Physical Damage**

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

The following coverage extension is added.

- a. If Hired Autos Liability coverage is provided to **you** by this policy, or any other policy or coverage form provided by **us** or a company affiliated with **us**, then **SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE, 1. a. Comprehensive Coverage** and **b. Collision Coverage** extend to an **auto** (that is not a **trailer**) **you** lease, hire, rent or borrow.
This does not include any **auto** (that is not a **trailer**) **you** lease, hire, rent or borrow from any of **your employees**, partners (if **you** are a partnership), members (if **you** are a limited liability company), **executive officers** (if **you** are a corporation), or members of their households.

- b. The most **we** will pay for **loss** to any one covered **auto** is the lesser of:
 - (1) The actual cash value of stolen or damaged property at the time of **loss**;
 - (2) The cost, at local prices, to repair or replace damaged or stolen property with other property of like kind and quality; or
 - (3) The limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Hired Autos Physical Damage.

The Comprehensive Coverage and Collision

Coverage deductibles shown in the

COMMERCIAL AUTO PLUS COVERAGE

PACKAGE - STANDARD DECLARATIONS for

Hired Autos Physical Damage apply separately

to each **auto** covered by this coverage

extension.

9. **Transportation Costs**

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

The following coverage extension is added.

We will reimburse **you** for expenses **you** incur for transporting **you** from where a covered **auto** was disabled, to **your** home, place of business or intended destination. **Our** maximum payment shall not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Transportation Costs. No deductible applies to this coverage extension.

10. **Transportation Expenses Following Theft**

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE 3. Coverage Extensions is

amended. **b. Transportation Expenses Following Theft** is deleted and replaced by:

b. Transportation Expenses Following Theft

If Comprehensive Coverage is shown for an **auto** scheduled in the Declarations, **we** will pay up to the per day limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Transportation Expenses Following Theft but not more than the per loss limit shown in that Declarations in any one **loss** for transportation expenses incurred if such **auto** is stolen. **We** will pay such expenses incurred beginning 48 hours after **you** report the theft to **us** and to the police and ending when such **auto** is returned to use or **we** pay for its **loss**. No deductible applies to this coverage extension. This coverage extension is excess of any other insurance.

11. **Motor Cargo**

SECTION III - PHYSICAL DAMAGE COVERAGE A. COVERAGE is amended.

The following coverage extension is added.

- a. **We** will extend the Comprehensive Coverage and the Collision Coverage that apply to a covered **auto** to **loss** to:
 - (1) **Your** property owned, sold or serviced by **you** and in the course of delivery;
 - (2) Property of others for which **you** are legally liable as a truckman under a:
 - (a) Tariff;
 - (b) Bill of lading; or
 - (c) Shipping receipt.
 - b. This coverage extension is subject to the following:
 - (1) This coverage extension does not apply to:
 - (a) Accounts, bills, currency, deeds, evidences of debt, notes, money, securities, jewelry, or other similar valuables.
 - (b) Damage to live animals, except for death or death made immediately necessary because of injury caused by:
 - 1) Fire;
 - 2) Lightning;
 - 3) Flood;
 - 4) Explosion;
 - 5) Collision;
 - 6) Derailment;
 - 7) Overturn; or
 - 8) Stranding, burning or sinking of a ferry or lighter.
 - (c) Painting, statuary or other works of art, or articles that are antique or curious in nature unless such **loss** is an absolute total **loss** caused by a peril **we** insure against.
 - (d) **Loss** by pilferage.
 - (e) Insects, rodents, vermin, birds, animals or inherent vice.
 - (f) Loss from profit, loss of use or loss of market.
 - (g) Leakage, evaporation, shrinkage, breakage, heat or cold, or by being scented, molded, rusted, rotted, soured or changed in flavor or by bending, denting, chipping, marring or scratching unless caused by any of the following:
 - 1) Fire;
 - 2) Lightning;
 - 3) Wind;
 - 4) Flood;
 - 5) Explosion;
 - 6) Collision;
 - 7) Derailment;
 - 8) Overturn; or
 - 9) Stranding, burning or sinking of a ferry or lighter.
 - (h) Riots and civil commotion.
 - (i) Strikers, lock-out workers, or persons taking part in labor disturbances.
 - (j) Any property covered under any other coverage extension within this endorsement.
 - (2) All shipments shall be valued at the actual invoice cost, including:
 - (a) Prepaid freight; and
 - (b) Cost and charges which have accrued and become legally due on such shipments.
 - (3) If there is no invoice, the valuation of the property coverage shall be the cash market value of the article(s) covered on the date and at the place of shipment.
 - (4) With respect to **loss** to any part of covered property made up of several parts, when complete for sale or use, **we** shall only pay for the part lost or damaged. With respect to damage to labels, capsules or wrappers, **we** shall only pay the cost of:
 - (a) New labels, capsules or wrappers; and
 - (b) Reconditioning the goods.
 - (5) With respect to **loss** by breakage of eggs, **we** will pay only when such **loss** exceeds 50% of the value of each shipping package, but **we** will pay no more than \$250 for any one **loss**.
 - (6) **Our** limit of insurance for all **loss** under this coverage extension shall not exceed the per loss limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Motor Cargo. No deductible applies to this coverage extension.
 - (7) This coverage extension shall apply as excess insurance over any other specific insurance.
- 12. Air Bag Replacement (Other Than a Private Passenger Auto)**
- SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE** is amended.
- The following coverage extension is added.
- a. **We** will extend the Comprehensive Coverage that applies to a covered **auto**, other than a **private passenger auto**, for the replacement of the air bag when it inflates without such **auto** having been involved in a Comprehensive or Collision **loss**.
 - b. The deductible shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Air Bag Replacement applies to this coverage extension. **We** will reduce **our** payment by such deductible amount.

13. Common Loss Deductible - Motor Cargo**SECTION III - PHYSICAL DAMAGE COVERAGE,**

A. COVERAGE is amended. The following provision is added.

- a. If **you** have coverage with **us** or a company affiliated with **us** under any of the following Motor Cargo Coverage Forms:
- (1) Motor Cargo Special Form;
 - (2) Motor Cargo Named Perils Form;
 - (3) Truckmen's Gross Receipts Motor Cargo Named Perils Form;
 - (4) Truckmen's Legal Liability Motor Cargo Special Form;
 - (5) Annual Transportation Form - Named Perils;
 - (6) Annual Transportation Form - Special Form; or
 - (7) Trip Transit Form
- and there is a covered **loss** under that Motor Cargo Coverage Form and this policy then, at **your** option, the **auto** deductible applicable to the **loss** will be reduced by the amount of the applicable deductible under the Motor Cargo Coverage Form. In the event that more than one **auto** deductible provision applies to the same covered **loss**, with **your** permission, **we** will use the deductible that benefits **you** the most.
- b. However:
- (1) The covered **losses** must result from a single occurrence and **you** must file a claim on each of the covered **losses**.
 - (2) The amount of **loss** under each policy must exceed the applicable deductible and result in a paid **loss**.
 - (3) In no event will the amount of such reduction exceed the amount of the applicable **auto** deductible.

14. Replacement Cost on New Vehicles**SECTION III - PHYSICAL DAMAGE COVERAGE,**

C. LIMIT OF INSURANCE is amended.

Paragraph 2. is deleted and replaced by the following.

2. **We** will, at **our** option, replace an **auto** scheduled in the Declarations with a new one of equal value or pay **you your** original purchase price if:
- a. Such **auto** is not a motorcycle;
 - b. **You** purchased it new;
 - c. **We** determine the **loss** cannot be repaired; and

- d. The **loss** occurs within the number of days of purchase shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Replacement Cost on New Vehicles.

As it applies to this coverage only, a motorcycle means a vehicle having a saddle or seat for the use of the rider, designed to travel on not more than three wheels in contact with the ground, which is equipped with a motor that exceeds fifty cubic centimeters piston displacement. The wheels on any attachment to the vehicle shall not be considered as wheels in contact with the ground.

15. Rental Auto Gap**SECTION III - PHYSICAL DAMAGE COVERAGE,**

C. LIMIT OF INSURANCE is amended.

The following provision is added.

- a. If the first Named **Insured** is:
- (1) An individual; or
 - (2) Other than an individual with the Drive Other Car Coverage - Broadened Coverage for Named Individuals endorsement with Comprehensive and Collision Coverages; and
- b. If the **auto** is:
- (1) A rented **private passenger auto**;
 - (2) Not a total **loss**; and
 - (3) Sold in its damaged condition rather than repaired, as decided by the rental company from which **you** rented the **auto**, **we** will pay the amount for which:
 - (a) **You**, if an individual; or
 - (b) The individual listed on the Drive Other Car Coverage - Broadened Coverage for Named Individuals endorsement, if **you** is other than an individual are liable under the terms of the rental agreement; or
- c. If the **auto** is:
- (1) A rented **private passenger auto**;
 - (2) Not a total **loss**; and
 - (3) Repaired
- we** will pay for damages to the rented **private passenger auto** because of or resulting from the **diminished value**.

All other policy terms and conditions apply.